

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DENIS EUGENE,

Plaintiff(s),

- against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, POLICE OFFICER MATTHEW DUNNE,
SHIELD #14902, individually and in his official capacity,
POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382,
TAX ID#951397, individually and in his official capacity,
POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN,
individually and in his official capacity, POLICE OFFICERS,
"JOHN DOES" 1-10 OF THE 70TH PRECINCT, the identities of
whom are presently unknown, in their official and individual
capacities, SERGEANT DARREN KING,
SHIELD#UNKNOWN, individually and in his official capacity,
and SERGEANT MICHAEL BORG, SHIELD#UNKNOWN,
individually and in his official capacity.

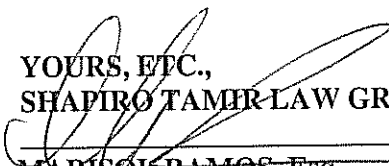
Defendant(s).
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 10, 2013

YOURS, ETC.,
SHAPIRO TAMER LAW GROUP PLLC


MARISOL RAMOS, Esq.
30 Broad Street, 14th Floor
New York NY 10004
(212) 444-9974

DEFENDANT'S ADDRESS:
Corporation Counsel
City of New York Law Department
100 Church Street
New York NY 10007

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Kings as the
place of trial.

The basis of venue is plaintiff's
place of residence.

Plaintiff resides at:
1242 New York Avenue
Brooklyn NY

SUPREME COURT OF THE STATE OF NEW YORK
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"JOHN DOES" 1-10 OF THE 70TH PRECINCT, the identities
of whom are presently unknown, in their official and individual
capacities, SERGEANT DARREN KING, SHIELD#UNKNOWN,
individually and in his official capacity, and SERGEANT
MICHAEL BORG, SHIELD#UNKNOWN,
individually and in his official capacity.

Defendant(s).

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VERIFIED
COMPLAINT

Plaintiff, by his attorneys, **SHAPIRO TAMIR LAW GROUP PLLC** as and for his

Verified Complaint herein, respectfully alleges the following:

INTRODUCTION

1. This action is brought by DENIS EUGENE for monetary damages for the violation of his Civil Rights pursuant to 42 USC 1983, 1985, 1986, slander, libel, assault, malicious prosecution, false arrest, false imprisonment, trespass and conversion of chattels, intentional infliction of emotional distress, negligent hiring, supervision and retention, loss of future earnings, medical expenses, and attorney's fees.
2. On June 18, 2012, at approximately 17:00 hours and until 18:52 hours, while lawfully

seated in his vehicle, at or near the intersection of Flatbush Avenue and Church Ave, County of Kings, State of New York, the Plaintiff was assaulted, verbally abused with racial epithets, unlawfully detained, confined, and arrested by Defendant and Police Officer, MATTHEW DUNNE, Shield #14902 and his partner Police Officer "John Doe," Shield #UNKNOWN. Thereafter, taken to the 70th precinct for processing wherein he was unlawfully confined and imprisoned.

3. Defendant and Police Officer, MATTHEW DUNNE, Shield #14902 did also commit trespass and conversion to chattels when he intentionally shattered the windows of the Plaintiff's vehicle whilst Plaintiff was sitting in the vehicle's driver's seat after being unlawfully detained. Further, Defendant Police Officer, MATTHEW DUNNE, Shield #14902, did also commit slander and libel when he called the Plaintiff a "fucking immigrant" in front of a bus stop full of people, and then subsequently wrote out a Police Report and corroborated a complaint with the Kings County District Attorney which had false allegations and criminal charges against the Plaintiff.
4. That as a result of the incident, the plaintiff was caused to sustain serious, severe and permanent personal injuries, including but not limited to, emotional distress and shock, mental anguish, psychological and emotional disturbances, loss of property, legal expenses, Taxi & Limousine Commission fees, and loss of enjoyment of life, most of which require medical care and treatment and will continue in the future. And, he was further caused to sustain serious economic damage and hardship by reason of loss of employment and income, all of which is expected to continue in the future.
5. That at all times hereinafter mentioned, the Plaintiff was and still is a resident of the

County of Kings, State of New York.

6. That upon information and belief, at all the times hereinafter mentioned, the defendant, NEW YORK POLICE DEPARTMENT, was and still is a domestic entity organized and existing under and by virtue of the laws of the State of New York.
7. That upon information and belief, at all the times hereinafter mentioned, the defendant, NEW YORK POLICE DEPARTMENT, was and still is a domestic entity organized and existing under and by virtue of the laws of the City of New York.
8. That upon information and belief, at all times hereinafter mentioned, the defendant, POLICE OFFICER MATTHEW DUNNE, SHIELD#14902, was and still is a resident of the County of Kings, State of New York.
9. That upon information and belief, at all times herein after mentioned, the defendant, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, was and still is a resident of the County of Kings, State of New York.
10. That upon information and belief, at all times herein after mentioned, the defendant, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, was and still is a resident of the County of Kings, State of New York.
11. That upon information and belief, at all times herein after mentioned, the defendants, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, were and still are residents of the County of Kings, State of New York.
12. That upon information and belief, at all times herein after mentioned, the defendant, SERGEANT DARREN KING, was and still is a resident of the County of Kings, State of New York.

13. That upon information and belief, at all times herein after mentioned, the defendant, SERGEANT MICHAEL BORG, was and still is a resident of the County of Kings, State of New York.
14. That the Defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, POLICE OFFICER MATTHEW DUNNE, SHIELD #14902, individually and in his official capacity, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, individually and in his official capacity, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, individually and in his official capacity, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, the identities of whom are presently unknown, in their official and individual capacities, SERGEANT DARREN KING, SHIELD#UNKNOWN, individually and in his official capacity, and SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, individually and in his official capacity, are herein collectively referred to as "Defendants."

AS AND FOR A FIRST CAUSE OF ACTION

CIVIL RIGHTS VIOLATION
Pursuant to 42 USC 1983, 1985, 1986

15. The plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "14" of the Complaint herein with the same force and effect as if more fully set forth herein.
16. That as a result of the incident, the Plaintiff was deprived of rights, privileges and immunities secured by the Constitution and laws of the United States.
17. That the incident could and should have been prevented by the second Police Officer on scene, Defendant POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, and as a

result of his failure to do so, committed a violation of Plaintiffs Civil Rights.

18. That the incident could and should have been prevented by the second Police Officer on scene, Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, and as a result of his failure to do so, committed a violation of Plaintiffs Civil Rights.

19. That the foregoing accident and the injuries and damages resulting therefrom were caused solely by reason of the careless, reckless and intentional conduct of the Defendants, their agents, servants and/or employees, and were in no manner caused by the plaintiff.

AS AND FOR A SECOND CAUSE OF ACTION

SLANDER AND LIBEL

20. The plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "19" of the Complaint herein with the same force and effect as if more fully set forth herein.

21. That the Defendant POLICE OFFICER MATTHEW DUNNE, Shield #14902, did intentionally and maliciously orally defame the Plaintiff when he called him a "Fucking Immigrant" in front of a bus stop full of people, and then proceeded to untruthfully report that the Plaintiff had committed a crime, namely, Reckless Endangerment in the Second Degree.

AS AND FOR A THIRD CAUSE OF ACTION

ASSAULT

22. The plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "21" of this Complaint herein with the same force and effect as if more fully set

forth herein.

23. That the Defendant POLICE OFFICER MATTHEW DUNNE, Shield #14902, did smash and break the back-side passenger window of Plaintiff's van while calling Plaintiff a "fucking immigrant".
24. That the Defendant POLICE OFFICER MATTHEW DUNNE, Shield #14902, did commit this act with the intent to cause apprehension of harmful or offensive contact, and this act was one that actually caused apprehension in Plaintiff that harmful or offensive contact was imminent.

AS AND FOR A FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

25. The plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "24" of this Complaint herein with the same force and effect as if more fully set forth herein.
26. That the criminal charges against the Plaintiff were adjourned in contemplation of dismissal after Plaintiff suffered the humiliation and embarrassment of appearing before a Criminal Court to answer the charges against him.
27. That the Defendants played an active role in the unlawful arrest, detention and subsequent prosecution of the Plaintiff.
28. That the Defendants did not have probable cause or reasonable grounds to support the Plaintiff's arrest.
29. That the Defendants prosecuted the criminal case with an improper, malicious, and racist purpose.

AS AND FOR A FIFTH CAUSE OF ACTION

FALSE ARREST and FALSE IMPRISONMENT

30. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “29” of this Complaint herein with the same force and effect as if more fully set forth herein.
31. That the Defendants, POLICE OFFICER MATTHEW DUNNE, Shield #14902, and his partner, POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, unlawfully restrained the Plaintiff without probable cause or reasonable basis, effectively impinging upon his personal liberty and freedom of movement.
32. That as a result of Defendants POLICE OFFICER MATTHEW DUNNE, and his partner, POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, unlawfully restraining the Plaintiff, the Plaintiff was falsely arrested and falsely imprisoned.
33. That the false arrest and false imprisonment of the Plaintiff by the Defendants was done with ill will and malice.

AS AND FOR A SIXTH CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

34. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “33” of this Complaint herein with the same force and effect as if more fully set forth herein.
35. That the Defendants acted with extreme and outrageous conduct with the intent to cause severe emotional distress.
36. That the Defendants acted with extreme and outrageous conduct with disregard to the

substantial probability of causing severe emotional distress.

37. That the Defendants' extreme and outrageous conduct was the proximate and direct cause of the Plaintiff's injuries and damages set forth herein.

38. That the Plaintiff suffered severe emotional distress as a result of the Defendants' extreme and outrageous conduct.

AS AND FOR A SEVENTH CAUSE OF ACTION

TRESPASS & CONVERSION OF CHATTELS

39. The plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "35" of this Complaint herein with the same force and effect as if more fully set forth herein.

40. That the Plaintiff was and still is the sole owner of the van in which Plaintiff was sitting in at the time he was unlawfully detained by Defendants.

41. That the Defendants dispossessed the Plaintiff of his van.

42. That without consent or permission, the Defendants interfered with the Plaintiff's possessory interests of the van.

43. That without consent or permission, the Defendants intermeddled with the Plaintiff's possessory interests of the van.

44. That the van was impaired by the Defendants, as to its condition, quality and value when Defendant OFFICER MATTHEW DUNNE, Shield #14902, purposefully, intentionally and maliciously smashed and broke the van's window(s).

45. That the Plaintiff was deprived of the use of his van for a substantial period of time.

46. That Plaintiff has a legally protected interest in his van, as he is a licensed Taxi and

Limousine Commission driver whose van is legally registered under this license.

47. That the Defendants caused harm and damage to a vehicle in which the Plaintiff had a legally protected interest.

AS AND FOR A EIGHTH CAUSE OF ACTION

NEGLIGENT HIRING, SUPERVISION and RETENTION

48. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “47” of this Complaint herein with the same force and effect as if more fully set forth herein.
49. That Defendants THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, SERGEANT DARREN KING, SHIELD#UNKNOWN, and SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, who are supervisory personnel in the chain of command above Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD#14902 and the second officer on scene, Defendant POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, are responsible for training, instruction, supervision, discipline, and control of Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD#14902 and the second officer on scene, Defendant POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN
50. Upon information and belief, the defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, SERGEANT DARREN KING, SHIELD#UNKNOWN, SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, have failed to take reasonable preventative or remedial measures to guard against the conduct of Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD#14902, and the second officer on scene,

Defendant POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, including but not limited to failing to give proper training and supervision so as to prevent them from committing unlawful, racist, and malicious acts.

51. That, had the defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, SERGEANT DARREN KING, SHIELD#UNKNOWN, SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, taken reasonable preventative or remedial measures to guard against the unlawful, malicious and racist conduct of Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD#14902, and the second officer on scene, Defendant POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, the Plaintiff would not have been wrongfully and falsely arrested, detained, and imprisoned, maliciously prosecuted, or assaulted.
52. That the failure of the defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, SERGEANT DARREN KING, SHIELD#UNKNOWN, SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, to take reasonable preventative or remedial measures to guard against the unlawful, malicious and racist conduct of POLICE OFFICER MATTHEW DUNNE, SHIELD#14902, and the second officer on scene, Defendant POLICE OFFICER JOHN DOE, SHIELD#UNKNOWN, amounted to gross negligence, deliberate indifference, and deliberate misconduct.
53. That the failure of the defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, SERGEANT DARREN KING, SHIELD#UNKNOWN, SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, directly caused the injuries suffered by Plaintiff.

54. That as a consequence of the failure of the defendants, THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, SERGEANT DARREN KING, SHIELD#UNKNOWN, SERGEANT MICHAEL BORG, SHIELD#UNKNOWN, the Plaintiff suffered the injuries and damages set forth above.

AS AND FOR A NINTH CAUSE OF ACTION

RESPONDEAT SUPERIOR

55. The plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “55” of this Complaint herein with the same force and effect as if more fully set forth herein.

56. That Defendant NEW YORK POLICE DEPARTMENT was and still is under the direct supervision and control of Defendant THE CITY OF NEW YORK.

57. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, was and still is under the direct supervision and control of Defendant, the NEW YORK POLICE DEPARTMENT.

58. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, was and still is under the direct supervision and control of Defendant, the NEW YORK POLICE DEPARTMENT.

59. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, was and still is under the direct supervision and control of Defendant, the NEW YORK POLICE DEPARTMENT.

60. That Defendant POLICE OFFICERS, “JOHN DOES” 1-10 OF THE 70TH PRECINCT, were and still are under the direct supervision and control of Defendant, the NEW YORK

POLICE DEPARTMENT.

61. That Defendant SERGEANT DARREN KING, SHIELD #UNKNOWN, was and still is under the direct supervision and control of Defendant, the NEW YORK POLICE DEPARTMENT.
62. That Defendant SERGEANT MICHAEL BORG, SHIELD #UNKNOWN, was and still is under the direct supervision and control of Defendant, the NEW YORK POLICE DEPARTMENT.
63. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, was and still is under the direct supervision and control of Defendant, SERGEANT DARREN KING, SHIELD #UNKNOWN.
64. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, was and still is under the direct supervision and control of Defendant, SERGEANT MICHAEL BORG, SHIELD #UNKNOWN.
65. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, was and still is under the direct supervision and control of Defendant, SERGEANT DARREN KING, SHIELD #UNKNOWN.
66. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, was and still is under the direct supervision and control of Defendant, SERGEANT MICHAEL BORG, SHIELD #UNKNOWN.
67. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, was and still is under the direct supervision and control of Defendant, SERGEANT DARREN KING, SHIELD #UNKNOWN.

68. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, was and still is under the direct supervision and control of Defendant, SERGEANT MICHAEL BORG, SHIELD #UNKNOWN.
69. That Defendant POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, were and still are under the direct supervision and control of Defendant, SERGEANT DARREN KING, SHIELD #UNKNOWN.
70. That Defendant POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, were and still are under the direct supervision and control of Defendant, SERGEANT MICHAEL BORG, SHIELD #UNKNOWN.
71. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees.
72. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees.
73. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees.
74. That protecting, conserving and respecting the Plaintiff's rights, privileges and

immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees.

75. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendants POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees.

76. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, SERGEANT DARREN KING, SHIELD #UNKNOWN, his agents, servants and/or employees.

77. That protecting, conserving and respecting the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States is within the course and scope of the duties of Defendant, SERGEANT MICHAEL BORG, SHIELD #UNKNOWN, his agents, servants and/or employees.

78. That preventing an employee-police officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, NEW YORK POLICE DEPARTMENT.

79. That preventing a fellow Officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, POLICE OFFICER, JOHN DOE, SHIELD

#UNKNOWN.

80. That preventing a fellow Officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397.

81. That preventing a fellow Officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN.

82. That preventing a fellow Officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendants, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT.

83. That preventing a fellow Officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, SERGEANT DARREN KING, SHIELD #UNKNOWN.

84. That preventing a fellow Officer from violating the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States, is within the course and scope of the duties of the Defendant, SERGEANT MICHAEL BORG, SHIELD #UNKNOWN.

85. That the injuries sustained by the Plaintiff were due to Defendant, NEW YORK POLICE

DEPARTMENT, its agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

86. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

87. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

88. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

89. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.

90. That the injuries sustained by the Plaintiff were due to Defendant, SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by

the Constitution and laws of the United States.

91. That the injuries sustained by the Plaintiff were due to Defendant, SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees' failure to protect, conserve and respect the Plaintiff's rights, privileges and immunities secured by the Constitution and laws of the United States.
92. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees.
93. That not falsely reporting that a crime was committed is within the course and scope of the duties of the Defendant, NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees.
94. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees.
95. That not falsely reporting that a crime was committed is within the course and scope of the duties of the Defendant, POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees.
96. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees.
97. That not falsely reporting that a crime was committed is within the course and scope of the duties of the Defendant, POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382,

TAX ID#951397, his agents, servants and/or employees.

98. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees.

99. That not falsely reporting that a crime was committed is within the course and scope of the duties of the Defendant, POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees.

100. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees.

101. That not falsely reporting that a crime was committed is within the course and scope of the duties of the Defendant, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees.

102. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees.

103. That not falsely reporting that a crime was committed is within the course and scope of the duties of the Defendant, SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees.

104. That not defaming the Plaintiff is within the course and scope of the duties of the Defendant, SERGEANT MICHAEL BORG, his agents, servants and/or employees.

105. That not falsely reporting that a crime was committed is within the course and scope of

the Defendant, SERGEANT MICHAEL BORG, his agents, servants and/or employees.

106. That the injuries sustained by the Plaintiff were due to Defendant, NEW YORK

POLICE DEPARTMENT, its agents, servants and/or employees' defamation of Plaintiff.

107. That the injuries sustained by the Plaintiff were due to Defendant, NEW YORK

POLICE DEPARTMENT, its agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

108. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER

MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees' defamation of Plaintiff.

109. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER

MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

110. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER

VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees' defamation of Plaintiff.

111. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER

VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

112. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER

SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees' defamation of Plaintiff.

113. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICER

SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

114. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees' defamation of Plaintiff.

115. That the injuries sustained by the Plaintiff were due to Defendant, POLICE OFFICERS, "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

116. That the injuries sustained by the Plaintiff were due to Defendant, SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees' defamation of Plaintiff.

117. That the injuries sustained by the Plaintiff were due to Defendant, SERGEANT DARREN KING, #UNKNOWN, is agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

118. That the injuries sustained by the Plaintiff were due to Defendant, SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees' defamation of Plaintiff.

119. That the injuries sustained by the Plaintiff were due to Defendant, SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees' false reporting that Plaintiff had committed a crime.

120. That not acting with intent to cause apprehension of harmful or offensive contact against an individual is within the course and scope of the duties of Defendant, POLICE

OFFICER MATTHEW DUNNE, SHIELD #149020.

121. That the apprehension of harmful and offensive contact sustained by Plaintiff was due to the Defendant, POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees.
122. That Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees must have probable cause or reasonable grounds to support an arrest before making said arrest.
123. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
124. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
125. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
126. That Defendants POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
127. That Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.

128. That Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees, must have probable cause or reasonable grounds to support an arrest before making said arrest.
129. That Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
130. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, its agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
131. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, its agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
132. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, its agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
133. That Defendants POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
134. That Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.
135. That Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants

and/or employees, did not have probable cause or reasonable grounds to support Plaintiff's arrest, resulting in Plaintiff sustaining injuries.

136. That Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

137. That Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

138. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff by the Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

139. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

140. That Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

141. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff by the Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

142. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

143. That Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX

ID#951397, his agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

144. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff

by the Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

145. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents,

servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

146. That Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents,

servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

147. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff

by the Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.

148. That Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT,

their agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.

149. That Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT,

their agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.

150. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff by the Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees, the Plaintiff suffered severe personal injuries.
151. That Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.
152. That Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.
153. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff by the Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.
154. That Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees had and still have a duty not to unlawfully restrain or arrest Plaintiff.
155. That Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees had and still have a duty not to unlawfully impinge on the personal liberty and freedom of movement of Plaintiff.
156. That due to the malicious and intentional false arrest and false imprisonment of Plaintiff by the Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees, the Plaintiff suffered severe personal injuries.
157. That it is the duty of Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

158. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees' extreme and outrageous conduct.

159. That it is the duty of Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

160. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees' extreme and outrageous conduct.

161. That it is the duty of Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

162. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees' extreme and outrageous conduct.

163. That it is the duty of Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

164. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees' extreme and outrageous conduct.

165. That it is the duty of Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE

70TH PRECINCT, their agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

166. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees' extreme and outrageous conduct.

167. That it is the duty of Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

168. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees' extreme and outrageous conduct.

169. That it is the duty of Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees not to act with extreme and outrageous conduct with intent to cause severe emotional distress.

170. That the severe emotional distress suffered by the Plaintiff was caused by the Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees' extreme and outrageous conduct.

171. That it is the duty of the Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

172. That it is the duty of the Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

173. That as a result of the Defendant NEW YORK POLICE DEPARTMENT, its agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended period of time.

174. That it is the duty of the Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

175. That it is the duty of the Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

176. That as a result of the Defendant POLICE OFFICER MATTHEW DUNNE, SHIELD #149020, his agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended period of time.

177. That it is the duty of the Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

178. That it is the duty of the Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

179. That as a result of the Defendant POLICE OFFICER VICTOR VILLAREAL, SHIELD#4382, TAX ID#951397, his agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended period of time.

180. That it is the duty of the Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

181. That it is the duty of the Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

182. That as a result of the Defendant POLICE OFFICER SULLIVAN, SHIELD #UNKNOWN, his agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended

period of time.

183. That it is the duty of the Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

184. That it is the duty of the Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

185. That as a result of the Defendant POLICE OFFICERS "JOHN DOES" 1-10 OF THE 70TH PRECINCT, their agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended period of time.

186. That it is the duty of the Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

187. That it is the duty of the Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

188. That as a result of the Defendant SERGEANT DARREN KING, #UNKNOWN, his agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a

broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended period of time.

189. That it is the duty of the Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees, not to illegally dispossess an individual of his vehicle.

190. That it is the duty of the Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees, not to interfere with the Plaintiff's possessory interests in his vehicle without his consent or permission.

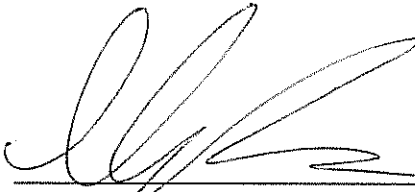
191. That as a result of the Defendant SERGEANT MICHAEL BORG, #UNKNOWN, his agents, servants and/or employees' intermeddling with the Plaintiff's possessory interests in his vehicle, the Plaintiff suffered personal damages, including but not limited to a broken van window and Taxi & Limousine Commission fees for not being able to produce his van for inspection as mandated by law because the Defendant the NEW YORK POLICE DEPARTMENT had it in its possession for an extended period of time.

192. That by reason of the intentional acts of the Defendants, their agents, servants and/or employees, the Plaintiff was caused to suffer serious and severe permanent injuries and damages causing him psychological and emotional anguish and distress, and requiring medical care and treatment which will continue in the future, and was caused to sustain economic damages by reason of the loss of employment and income which is expected to continue into the future, and the vehicle repair and Taxi & Limousine Commission fees.

WHEREFORE, plaintiff demands judgment against the defendants in a sum which exceeds the jurisdictional limits of all lower courts; together with the costs, disbursements and interest

relating to each cause of action, including punitive damages, compensatory damages, nominal damages, and attorney's fees, and for such other and further relief as this court may deem just and proper.

Dated: New York, NY
May 10, 2013

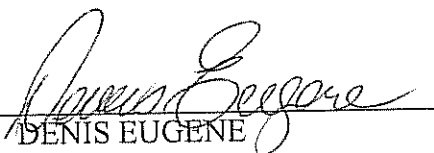


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Attorneys for Plaintiff(s)
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New York, NY 10004
(212) 444-9974 x2029

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

DENIS EUGENE, being duly sworn, deposes and say: I am the plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matter therein stated to be alleged on information and belief, and as to those matters I believe it to be true.


DENIS EUGENE

Sworn to before me this
10th day of *May*, 2013


NOTARY PUBLIC

MARISOL RAMOS
NOTARY PUBLIC STATE OF NEW YORK
QUEENS COUNTY
LIC. #02RA6218703
COMM. EXP. 3/8/14